

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant specifically demurs to plaintiff’s first cause of action on the grounds plaintiff has not filed a certificate of merit. Code of Civil Procedure section 411.35 requires in professional negligence actions against a person holding a valid land surveyor’s license, as here, for plaintiff to file and serve a certificate of merit within 60 days after filing a complaint. (Code Civ. Proc., § 411.35, subds. (a)–(b).)

Here, when taking the factual allegations in the complaint as true and reviewing the court record, there are insufficient allegations that plaintiff has timely filed and served a certificate of merit. Accordingly, defendant’s demurrer is sustained with leave to amend. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

Plaintiff shall file and serve an amended complaint on or before **August 24, 2026**.

10. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim (Lena Eliza Avakyan)

The petition for approval of minor’s compromise claim is denied without prejudice. There is insufficient evidence of good cause alleged for the entirety of the recovery to be awarded to the minor’s mother.

11. S-CV-0057560 DESJARLAIS, RICKY v. CUMMING MANAGEMENT

Defendants’ Demurrer to Plaintiff’s Complaint

Defendants demur to all six causes of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the six causes of action alleged. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no